



POLICE DEPARTMENT

September 8, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202403115 (Incident Date: March 20, 2024) regarding Sergeant Denis Gamez,
Tax No. 949000 (PODS Case No. C-035049)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Denis Gamez and has determined that his actions do not warrant the proposed penalty by CCRB.

In this case, Sergeant Gamez, was flagged down for an incident involving a car leaving the scene of an accident without reporting. After reviewing the facts, he learned that a robbery had occurred and thereafter, canvassed for the perpetrators. After a few minutes, he located the alleged perpetrator parked nearby. Sergeant Gamez knew what the perpetrator looked like because he was one of the initial individuals he spoke with regarding a vehicle leaving the accident scene. In light of the facts, Sergeant Gamez was concerned that the perpetrator could have weapons due to the violent nature of the crime. Sergeant Gamez's conduct was proper and in compliance with Patrol Guide 212-11, as the Patrol Guide authorizes a frisk when the officer "reasonably suspects" that the subject is armed and dangerous. This includes circumstances when the officer "reasonably suspects" that the person has committed a violent crime. As a result of the above and based on the totality of the circumstances, the Police Commissioner finds that Sergeant Gamez's frisk was proper, and no disciplinary action is warranted. However, Sergeant Gamez was required to activate his Body Worn Camera at the beginning of this interaction.

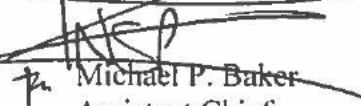
Therefore, based on the foregoing, Sergeant Gamez will receive no disciplinary action for the improper frisk allegation. However, Sergeant Gamez will be issued a Schedule "A" Command

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Discipline with the forfeiture of one (1) vacation day and will receive formalized training for failing to activate his body-worn camera.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office